

Court No. - 37

Case :- WRIT - C No. - 7963 of 2012

Petitioner :- Foran Singh

Respondent :- Executive Engineer, Daksrinanchal Electricity Dis.Div.& Anr.

Petitioner Counsel :- Suresh Chandra Mishra

Respondent Counsel :- Rajesh Tripathi

Hon'ble Vineet Saran,J.

Hon'ble Ashok Pal Singh,J.

By means of this writ petition the petitioner is not challenging any recovery proceeding and as such this Bench will not have jurisdiction to entertain this writ petition.

Put up as a fresh case before the appropriate Bench on 16.2.2012 showing the name of Sri S.K.Upadhyaya as counsel for the respondents.

Order Date :- 13.2.2012

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(Ashok Pal Singh, J)

(Vineet Saran, J)

Court No. - 21

Case :- WRIT - C No. - 7963 of 2012

Petitioner :- Foran Singh

Respondent :- Executive Engineer, Dakshinanchal Electricity Dis.Div.& Anr.

Petitioner Counsel :- Suresh Chandra Mishra

Respondent Counsel :- Rajesh Tripathi, S.K. Upadhyaya

Hon'ble Ashok Bhushan, J.

Hon'ble Mrs. Sunita Agarwal, J.

By this petition, the petitioner has prayed for mandamus directing the respondents to decide the representation of the petitioner as early as possible.

Petitioner earlier filed a writ petition no. 15059 of 2011. When the aforesaid case was heard, it was pointed out that the order dated 4.4.2011 which has been filed as Annexure No. 4 to the writ petition, the representation of the petitioner has already been decided by the Executive Engineer. This Court disposed of the writ petition with the following observations,:

" From the narration of the facts above, it is evident that in view of the order dated 4.4.2011 passed by the respondent no.1, the prayers made in the Writ Petition have become infructuous.

As regards the order dated 4.4.2011, it is open to the petitioner to pursue appropriate remedy available to the petitioner in view of the provisions contained in Clause 7.10 read with Clauses 7.7.1 to 7.7.5 of the U.P. Electricity Supply Code, 2005.

We accordingly dispose of the Writ Petition leaving it open to the petitioner to pursue appropriate remedy under the relevant provisions of the U.P. Electricity Supply Code, 2005 in respect of the aforesaid order dated 4.4.2011 passed by the respondent no.1."

Petitioner has again filed this writ petition with the prayer that direction be issued to decide the representation dated 20.5.2011. When this Court has already observed that the petitioner to pursue appropriate remedy available to the petitioner in view of the provisions contained in Clause 7.10 read with Clauses 7.7.1 to 7.7.5 of the U.P. Electricity Supply Code, 2005. The petitioner ought to have avail the remedy as provided. The writ petition for relief which has been filed can not be entertained. The petitioner, if so advised, may seek the aforesaid remedy.

With these observations, the writ petition is dismissed.

Order Date :- 21.2.2012

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